

		contract and fraudulent inducement. Ca. Code of Civil Procedure Section 437c, Defendants have not opposed this motion. As such, they have not met their now shifted burden raising a triable issue fact exists as to either cause of action. See <i>Ganoe v. Metalclad Insulation Corp.</i> (2014) 227 Cal.App.4th 1577. Plaintiff to submit the formal order. Plaintiff to give notice.
2	Doe #1 F.H. vs. Roe 1 2022-01299995	Demurrer to Amended Complaint The demurrer by defendant The General Council of the Assemblies of God to plaintiff's First Amended Complaint [FAC] is SUSTAINED as to the 3rd and 6th causes of action, on grounds of failure to state facts sufficient to constitute a cause of action, and is otherwise OVERRULED. (Code Civ. Proc., § 430.10 [authorizing demurrer].) The Court observes that both parties argue facts and/or evidence which are not alleged in the FAC, nor subject to judicial notice. (Demurrer at 5:11-18, 11:1-3, 11:1-24, 12:23-27 [church organization, defendant's purported lack of knowledge or oversight]; Opposition at 3:19-4:21 [church organization, instances of abuse not alleged in FAC]; Ex. A to Opp [minutes from a 1998 meeting of the "Northern Pacific Latin American District Council"].) It is well settled that a demurrer can be used only to challenge defects that appear on the face of the pleading, or from matters outside the pleading of which judicial notice has been properly requested. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court has not considered these extrinsic matters. The parties are cautioned to avoid improper references to extrinsic matters on future pleading challenges, absent a proper request for judicial notice. The 3rd cause of action for sexual harassment pursuant to Civ. Code, §§ 51.9 & 52, and the 6th cause of action for violation of civil rights pursuant to Civ. Code, § 52.1, fail to state sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).) Statutory claims must be pled with specificity. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790; Fisher v.

		San Pedro Peninsula Hospital (1989) 214 Cal.App.3d 590, 604.) These causes of action only generally allege the elements of each claim, without any specific facts, which is insufficient. Further, the 6th cause of action fails to identify any specific constitutional or statutory right infringed, nor that plaintiff is a member of any specific class of people that this law was designed to protect. The remainder of the demurrer is OVERRULED. The remaining claims challenged by the instant demurrer are not statutory claims and are not required to be pled with the specificity required for the 3rd and 6th causes of action. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550 [“the complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts”]; Lim v. The.TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690 [“California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) in ordinary and concise language, and the test for adequacy is not absolute but whether the pleading as a whole apprises the adversary of the factual basis of the claim;” internal citations and quotation marks omitted].) Here, the FAC sufficiently alleges ultimate facts as to defendant’s allegedly negligent hiring and/or supervision. (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 878-879 [entity defendant “may be vicariously liable ... for the negligence of administrators or supervisors in hiring, supervising and retaining [an] employee who sexually harasses and abuses” a minor”]; FAC ¶¶ 17, 25-27 [alleging negligent hiring and/or supervision].) The FAC also sufficiently alleges ultimate facts supporting employer liability on a ratification theory. (C.R. v. Tenet Healthcare Corp. (2009) 169 Cal.App.4th 1094, 1110–1111 [“failure to discharge an employee who has committed misconduct may be evidence of ratification ... [t]he theory of ratification is generally applied where an employer fails to investigate or respond to charges that an employee committed an intentional tort, such as assault or battery ... [w]hether an employer has ratified an employee's conduct is generally a factual question”]; LeBrun v. CBS Television Studios, Inc. (2021) 68 Cal.App.5th 199, 208 [“ratification of a wrongful act creates tort liability in the ratifier for that wrongful act”]; Ratcliff v. The Roman Catholic Archbishop of Los Angeles (2022) 79 Cal.App.5th 982, 1003, citing C.R.
--	--	---

		v. Tenet Healthcare Corp., supra at 1110–1111 [“Evidence of the ratification may come in many forms, for example where an employer fails to terminate, investigate, or respond to charges that an employee has committed an intentional tort”]; FAC ¶ 17 [alleging ratification] ¶ 36 [“Defendants ratified Perpetrator(s)’ sexual abuse of Plaintiff because Defendants had actual knowledge that Perpetrator(s) had sexually harassed and abused minors, including but not limited to Plaintiff, yet they intentionally turned a blind eye and still allowed Perpetrator(s) to work for Defendants, and did nothing to prevent any further abuse from occurring ... Defendants did not discipline or discharge Perpetrator(s); as such, they accepted and thus ratified his/her conduct”]; ¶ 42 [same].) Finally, the FAC is not so uncertain (Code Civ. Proc., § 430.10, subd. (f)) that moving defendant cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against it. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616; see also Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135 [uncertainty demurrers “strictly construe[d] ... because ambiguities can reasonably be clarified under modern rules of discovery”].) Plaintiff is granted 10 days’ leave to amend the 3rd and 6th causes of action. Moving party shall give notice.
3	Bakhshaei vs. Perez 2023-01353623	Motion to Compel Answers to Form Interrogatories ***Continued to May 30, 2025 at 9:30 AM by minute order dated 04/10/2025 (ROA 52)***
4	Wang vs. Geng 2022-01242154	1. Motion for Reconsideration 2. Case Management Conference